

ANNEXATION REPORT & STAFF REPORT

Swan Ranch II Annexation **Summation**

Annexation

(Please note: This is the staff report for both the resolution and ordinance.)

CASE NUMBER: UDC-13-00071

FILE CODE: SWRP-A

PUBLIC HEARING: April 22, 2013

REQUIRED

DOCUMENTS: All required documents have been submitted and reviewed by staff.

- Annexation Map – revised map submitted April 17, 2013
- Petitions signed by property owners
- Application forms
- Soils report – deferral letter approved
- Signed clearance from Board of Public Utilities

RECOMMENDATION: In order to meet the required statutory criteria for annexation including findings of the annexation being for the protection of health, safety, and welfare, staff recommends that the annexation be conditioned on dedication of land for a future fire station. Staff also recommends that the Governing Body explore options to fund constructing, equipping, and staffing the fire station, and direct staff to procure a study of the costs of new development for the purpose of making policy decisions in the future about paying for capital investments necessitated by development (i.e., road improvements, fire stations, etc.).

ANNEXATION REPORT & STAFF REPORT

Swan Ranch II Annexation Summation

Annexation

CASE NUMBER: UDC-13-00071 **FILE CODE:** SWRP-A

OWNERS: Clear Creek Land Company LLC, Swan Ranch LLC,
Granite Peak Development Management Inc. 307-472-7275

c/o Dan Guerttman

PO Box 51568

Casper, WY 82605

Cheyenne LEADS 307-638-6000

PO Box 1045

Cheyenne, WY 82003

Longhaul Enterprises 909-948-3030

PO Box 3059

Rancho Cucamonga, CA 91729

Cheyenne Light Fuel & Power 307-638-3361

108 W 18th St

Cheyenne, WY 82001

AGENT: Brad Emmons, AVI, p.c. 307-637-6017

1103 Old Town Lane #101

Cheyenne, WY 82009

REQUEST: Annexation to the City of Cheyenne

LOCATION:

1) Legal Description: Portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th p.m., Laramie County, Wyoming

2) General Location: Northwest of the intersection of Clear Creek Pkwy and Tundra Dr.

3) Address: 5310 Clear Creek Pkwy (Longhaul Enterprises), plus vacant land

CURRENT ZONING: PUD (two separate) and LI (County)

PROPOSED ZONING: City PUD and LI

EXISTING LAND USE: Partially platted industrial rail park (+/- 882 total acres)

PROPOSED LAND USE: Industrial rail park

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant ranch land	LI	County
South	Swan Ranch Rail Park	PUD	County
East	Vacant land	CB	County
West	Vacant ranch land	PUD	County

SUMMARY:

The owners of this 882-acre area west of and adjacent to Clear Creek Parkway on the west side of Interstate 25, north of and adjacent to Tundra Drive, have petitioned the City to annex the land into the City in order to develop an extension of the Swan Ranch Rail Park. Clear Creek Parkway and Tundra Drive are not included in the annexation in order to maintain their eligibility for certain state grants for funding for improvements. Those roads will likely be annexed with the next annexation in Swan Ranch Rail Park, at which time road maintenance including snow plowing would become the City's responsibility.

Wyoming State Statutes require that prior to annexing territory to the City certain steps must be followed, including the governing body conducting a public hearing and finding that the territory is eligible for annexation. The public hearing was conducted April 22, 2013. The statutes list six criteria that must be met for the territory to be eligible for annexation. The attached resolution finds compliance with these six criteria. The attached ordinance would approve the annexation, allowing the annexation map to be recorded and the property brought into the City.

The current County zoning is Light Industrial (LI) and Planned Unit Development (PUD). The applicant has submitted a City zoning proposal that includes LI zoning for a portion of the annexation area and a City PUD designed to accommodate the unique circumstances in the development for the remainder of the annexation. The intent is that the PUD could be adopted for other rail-served properties in future annexations in Swan Ranch as well.

The most immediate concern with the annexation is provision of adequate fire-fighting services. As noted in the comments from Cheyenne Fire & Rescue toward the end of this report, the approximate response time to the area proposed for annexation is eight to nine minutes – substantially longer than the four-minute standard set for the City.

In order to address this concern a new fire station is required in the vicinity. There are several components required for a fully functioning fire station:

1. Land,
2. Building,
3. Equipment (including fire engine), and
4. Staff

A preliminary approximation for the cost to build and equip a new fire station, including a new fire truck but excluding purchase of land, approaches \$7 million. Staffing a fire station also requires approximately \$1 million annually, a portion of which may be expected to be recouped from taxes and fees on the development.

A new fire station would benefit other property in the general area beyond Swan Ranch as those areas annex to the City and development occurs.

In staff's opinion there are several possible courses of action:

1. Approve the annexation with no action toward establishing a new fire station in the vicinity.
2. Approve the annexation conditioned on dedication of land for a new fire station and begin to study the adoption of impact fees or other methods to fund its construction and equipment.
3. Approve the annexation conditioned on dedication of land and construction of the fire station by the developer, with the City pursuing equipping the station.
4. Deny the annexation.

In staff's opinion, simply annexing the land without any provision of a fire station in the area could expose the annexation to challenge in court since it would be difficult to defend against claims that the annexation does not further protection of health, safety, and welfare. At the other extreme, denying the annexation would likely just lead to its continued development in the County, though it would impact the development in terms of fees and rates for water and sewer and may have other negative impacts. Staff feels the annexation can and should be contingent upon dedication of land for a fire station and possibly construction of the fire station by the developer. Additionally, it is important that the Governing Body consider how to equip the station and how to address similar situations with expanding need for sanitation and road maintenance equipment, as well future transportation improvements.

Using general revenue funding to fund the fire station and other necessary services would take that funding away from other projects and priorities and require all taxpayers in the City to pay for improvements necessitated by an individual development. On the other hand, requiring this developer to dedicate the land and pay the entire cost of construction benefits other landowners in the area without compensation from those other landowners. Establishing impact fees for these improvements would spread the cost among the landowners as their properties develop. For further discussion of impact fees, please see the section of this report on the Comprehensive Plan.



Facing south on Clear Creek Parkway – subject property on right



Construction on Wallick Road west of Clear Creek Pkwy



Looking north at Longhaul from Clear Creek Pkwy & Tundra Dr. Water pipe in foreground.

DESCRIPTION OF SITE AND SURROUNDINGS:

The property is 882 acres of partially platted vacant land with one lot under development. The southern part of the property was previously platted in the County. One of the platted lots is under construction. Longhaul Enterprises, a piping manufacturer at 5310 Clear Creek Parkway,

obtained building permits in the County prior to the annexation being initiated. The lot south of Longhaul contains a regional detention pond. Another lot in the annexation area is proposed for a Cheyenne Light, Fuel & Power substation. An unplatted parcel north of the proposed Wallick Road has also obtained a site plan for through the County.

A preliminary plat was approved and includes areas beyond the annexation to the north and west as well as the east side of Clear Creek Parkway up to I-25.

Swan Ranch, LLC, and Clear Creek Land Company own over 7,000 acres on either side of I-25. A 2011 development agreement is in place for over 4,000 acres of that area, which includes the current annexation. Under this agreement the City reimbursed the developer for \$300,000 toward the cost of the installation of a sewer main line for economic development purposes and agreed to purchase land for open space from the developer with the park fees to be obtained from the development of the property. Therefore, park fees have already been paid for the entire Swan Ranch area as long as it develops in the City.

Water lines in the Swan Ranch Rail Park, south of the current annexation, have been installed by the developer and given to the Board of Public Utilities, which leases them back to the developer. The water currently comes from well water stored in the water tower in Swan Ranch but will be City-treated water by June of 2014. If the property is not annexed, outside user agreements are required and system development fees and monthly rates are 50 percent higher for City water and sewer service.

COMPREHENSIVE PLAN:

LAND-USE AND ZONING: The future land-use plan in PlanCheyenne indicates Mixed-Use Commercial Emphasis, Mixed-Use Employment Emphasis, Mixed-Use Residential Emphasis, and Commercial Business for this area. Laramie County has zoned the subject property LI, Light Industrial, and PUD, Planned Unit Development, with industrial uses permitted in the PUD. A concurrent zone change is in process to establish City zoning of LI and PUD for the property.

Although the area is not designated as industrial on the future land use plan of PlanCheyenne, the area to the south has developed as an industrial park and that development is proposed to continue north to include this property and adjacent land. The most logical City zoning for the annexation, other than PUD, is Light Industrial and Heavy Industrial. PlanCheyenne is currently being updated and will likely reflect the types of uses being proposed for development in Swan Ranch.

POLICIES AND PRINCIPLES: The proposed development already has an approved preliminary plat in place and meets several goals and policies contained in PlanCheyenne, particularly those relating to employment and economic development. For example, Principle 3.1 states: “Our community will continue to promote a thriving and vital economy.” The Swan Ranch Rail Park has already added jobs to the local economy and further development is likely to do so as well. Additionally, the development is within the Urban Service Boundary, which meets the first Key Land Use Concept in PlanCheyenne.

The location of the rail park does, however, cause some conflict with Foundation 7 of PlanCheyenne – Developing in a Fiscally Responsible Way. Foundation 7 states that PlanCheyenne “aims to guide future growth to promote efficient use of public and private resources and to provide adequate public facilities. On the private side, new development should “pay its own way” and provide the necessary services for the new development concurrent with the development.” The City’s current public facilities and staffing levels are not adequate to serve the build-out of the proposed development without reductions in levels of service, as noted

in the comments below from Public Works, Police, and Fire. Since the City has not established impact fees other than Park Fees, which are used to acquire and improve park and open space land, Board of Public Utilities System Development Fees, which are used for water and sewer infrastructure, new development does not cover the costs of maintaining adequate levels of service. Infill development and redevelopment are less likely to overtax existing resources because they take advantage of infrastructure that is already in place and do not require services to be extended to new areas. In the past, growth in new areas has occurred slow enough that the City has attempted to absorb the increasing demands on service as development builds out. The scale of the development occurring in the Swan Ranch Rail Park and its distance from areas already being served make it unlikely that the City will be able to continue making up for increasing demands incrementally with grants and existing resources. PlanCheyenne contains a priority code revision of establishing impact fees following background studies which are necessary to “establish an acceptable level of service and reasonable fee based on the actual demand associated with a development.” (See ShapeCheyenne Policy 7.2.b, BuildCheyenne Strategy 7.b, and Appendix B, Section 9.)

Two ways of addressing concerns relating to a development’s effect on levels of service are an adequate public facilities ordinance, which is evaluated at the time of platting, and impact fees collected at the time of building permits. Adequate public facilities ordinances, in conjunction with the capital facilities planning process, establish minimum levels of service and require that if a particular development action would reduce levels of service below that threshold, the developer must address the reduction through land dedication, making public improvements, or contributing funds to pay for public improvements. The funds must be kept separate from other funds and used only for that purpose and typically within a specified timeframe or they would have to be returned to the developer. These improvements often will benefit other landowners beyond the development boundaries, however.

Impact fees are a consistent way to ensure that all development contributes to offsetting the impacts of the development, rather than a large development such as Swan Ranch being burdened with the entire cost, although the City could adopt both impact fees and an adequate facilities ordinance. Even with impact fees in place, it would take time for funds to accumulate to levels necessary to address the impacts of the proposed development. Therefore, an adequate public facilities ordinance may be necessary as well.

Impact fees can provide more predictability for developers since they know upfront what the costs will be and the time spent negotiating can thus be streamlined. With impact fees, all development other than those specifically exempted would pay into the fund based on the size and type of development proposed.

Impact fees need to be based on an independent study to establish what would be a reasonable charge based on the type and scale of development proposed. For example, Weld County, Colorado, based their fees on a 53-page, October, 2010 report. (Weld County collects a road impact fee of \$2,269 per new single-family dwelling unit and \$2,043 per 1,000 square feet of new industrial construction, in addition to a County facility impact fee of \$636 per new single-family dwelling unit and \$152 per 1,000 square feet of new industrial construction.) The cost of such studies, which may be roughly estimated to be in the range of \$50,000-\$75,000, can be folded into the fee once established. An interim impact fee ordinance while a study is being conducted may be an option to consider as well.

In 2007, the MPO initiated a discussion of impact fees for Laramie County to address concerns regarding roads. A report, Fiscal Impact Feasibility Analysis, was presented to the County with

recommendations to pursue additional information. At the time, Laramie County Commissioners did not elect to move forward.

The criteria for annexation may have been adopted with this type of problem in mind. However, since this property is currently vacant land other than the one lot under construction the annexation itself will not jeopardize the City's health, safety, and welfare; rather it is the subsequent development that raises concerns. If the City had provisions in place for addressing these concerns with platting and development, the annexation could be said to have minimal impact. Since Cheyenne does not have such provisions, it is difficult to ensure that the annexation and development will not result in a reduction of levels of service or other problems in the future.

Initial conversations with the developer indicate that there is mutual appreciation of the need for a fire station and possible support for establishing impact fees. Staff recommends initiating the process to evaluate adoption of an impact fee and/or adequate facilities ordinance and exploring options for procuring the necessary study.

If the developer of the subject property is willing to dedicate the necessary land for a future fire station that would address the first step toward eventually having a functioning fire station to serve the area and the annexation criteria for protection of health, safety, and welfare. The City could then pursue establishing impact fees, which would help fund the construction and equipping of the station. As mentioned, a study, as well as public discussion, would be required to determine the appropriate level of fees.

TRANSPORTATION: The Transportation Plan 2030 Roadway Vision Plan anticipates a new arterial connection (designated "Overland Trails Road") to Otto Road over a mile to the northwest and a new arterial road between Clear Creek Parkway and Overland Trails Road. The Buildout Roadway Vision Plan anticipates an additional interchange and crossing at I-25 in the Swan Ranch area between High Plains and College, as well as another additional arterial connection to Otto Road. The crossing at I-25 is likely to be the planned Wallick Road, not shown on the annexation map.

Similar to the Land Use discussion, the vision for this area has changed significantly since the adoption of PlanCheyenne in 2006. The assumptions for the transportation network were based on the land uses identified at that time, which included a mix of residential and commercial. The Transportation Plan is also being updated as a part of PlanCheyenne and will reflect the change in Land Use along with corresponding changes impacting the Transportation Plan.

As mentioned previously, Tundra and Clear Creek are not included in the annexation; however, those roads will likely need to be annexed in the future with subsequent annexations. At that point, road maintenance and snow plowing will become the City's responsibility, creating higher demands for limited resources (equipment, fuel, personnel).

Clear Creek Parkway is currently a three-lane road (two lanes plus a middle left-turn lane), though it may need to be widened to five in the future, depending on the amount of traffic generated by development in Swan Ranch. A new development agreement that will address potential future road improvements is under review and will be presented to City Council for approval. The developer is encouraged to set aside a portion of the proceeds from the sale of land in the development for future road widening.

ANNEXATION ELIGIBILITY DATA/ANALYSIS:

Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

- 1) “An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town.” **Findings:** In order to meet this criteria, the need for fire protection should be addressed. Without a new fire station in the vicinity, emergency response will take longer than the standard set for the City and may pull resources away from the rest of the City. Discussions between staff and the developer regarding dedication of Lot 18, Block 2, Swan Ranch Rail Park, Eighth Filing, for a future fire station at the corner of Clear Creek Parkway and the Wallick Road, but the developer has not committed to such a dedication. In addition to land for the fire station, the City must determine how to fund its construction, equipment, and staffing.
- 2) “The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town.” **Findings:** The property is approximately 8.7% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area and planned for urban services expansion. The City has been gradually growing toward the subject property over the past few years. People who work in this area likely reside, shop, and recreate in Cheyenne facilities. The annexation area takes advantage of existing major facilities in the area including major transportation corridors being proximate to the interchange of I-80 and I-25.
- 3) “The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed.” **Findings:** The area sought to be annexed is planned for urban services expansion in numerous City planning documents including PlanCheyenne, which is the Cheyenne Area comprehensive plan and the Board of Public Utilities master plan. The City’s water and sewer system has capacity to serve this area and construction has begun on a major water transmission line through the annexation area which is planned to be complete in 2014. Providers of City services have reviewed the proposed annexation and the annexation area, which is predominately undeveloped, and have determined that the area can be served within reason by City facilities and resources. Future development of the area may require additional facilities and resources. As mentioned, City Fire service to the area needs to be addressed. The need for other public facilities should also be evaluated in discussions on establishment of development impact fees.
- 4) “The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. § 15-1-407.” **Findings:** The property is approximately 8.7% contiguous with existing City limits.
- 5) “If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. § 15-1-410.” **Findings:** Franchises are in place to serve this property.
- 6) “The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. § 15-1-405(a).” **Findings:** The required information was sent March 25, 2013.

ANNEXATION REPORT DATA:

In compliance with W.S. § 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. § 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Sewer service is available and potable water is anticipated to be available by June, 2014. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Police and fire protection will be provided upon annexation; however, until a new functioning fire station is located in the area, emergency response may be slower than that to other areas of the City.
- (iv) Fees for water, sewer, and sanitation services are variable based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) Requirements for off-site improvements will be evaluated at the time of development.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Public Works:

Public Works' primary concerns are operational in nature. There will be an operational impact on Sanitation services as this will require modification of existing commercial collection routes to handle the wastes from business in the area. Further, there is a future impact on the City's Streets and Alleys Division due the eventual assumption of responsibility for maintenance, including snow removal for Clear Creek Parkway and other future streets. These operational impacts include the need for additional equipment and equipment operators for both Sanitation and Streets and Alleys.

City Attorney:

The staff of the City Attorney's office is conducting research to determine the manner in which the proposed annexation would affect the validity of the two County PUD's that were approved by the Laramie County Commissioners for this property. (Note: The comment has been addressed by submittal of a zone change application to City zoning.)

Police:

Police staffing has to be considered for this large of an annexation. As this is being developed we will have a delayed response time to this area. Once it is built out, we should add a police beat to split the very large south area. It would take an additional six officers to add a beat.

Fire:

This letter will serve and act as the guidelines for approval of fire-protection-water flow requirements under which Cheyenne Fire & Rescue will perform plan review functions for all Swan Ranch annexation areas. It is not intended to provide guidance on any issues outside of fire flow requirements and should be considered general information and guidance for the use of the proper design professionals. Full requirements for development and construction will be determined upon review of properly submitted plans.

Above mentioned requirements will stipulate the demands set forth in the International Fire Code, 2006 Edition, especially Section 508.1 and Section 1412, shall be planned for and followed as per code requirements.

Engineered plans showing approved Fire Protection Water plans shall be provided to Cheyenne Fire & Rescue. Said plans shall provide a record of compliance with the above referenced codes adopted by the city.

The International Fire Code (IFC), 2006 Edition requires Fire Protection Water Supplies be available and approved for all new construction. The IFC further states that water flow requirements must be determined by an approved method. Determination and evaluation of water supply adequacy is left to the discretion of the Fire Code Official. The IFC does however regulate the timing and arrival of fire protection water. IFC Section, 501.4 Timing of installation. When fire apparatus access roads or a water supply for fire protection is required to be installed, such protection shall be installed and made serviceable prior to and during the time of construction except when approved alternative methods of protection are provided. Temporary street signs shall be installed at each street intersection when construction of new roadways allows passage by vehicles in accordance with Section 505.2.

The City of Cheyenne Fire & Rescue Department will recognize NFPA 1142, Standard on Water Supplies for Suburban and Rural Fire Fighting, as the approved method for determination of required fire flow for all Swan Ranch and Clear Creek Development and construction. The type of water supply, as referenced in IFC 508.2, is subject to approval of the Cheyenne Fire & Rescue - Prevention Bureau. It may include either an individually engineered supply for each building or portion of a building or facility, or may be accomplished through the construction of one or more joint water supply facilities.

This standard shall remain in place until completion of the planned southern water main project, (but not later than July 1, 2014 unless agreed to and reduced to writing) at which time water flow requirements of the IFC, including, but not limited to, Table B105.1 of the IFC will become the controlling language.

All construction and development having taken place prior to completion of the planned southern water main project, (but not later than January 1, 2014 unless agreed to and reduced to writing) shall also be required to be modified to meet water flow requirements of the IFC, including, but not limited to, Table B105.1 of the IFC.

The following International Fire Code excerpts are recognized as the controlling language:

SECTION 508

FIRE PROTECTION WATER SUPPLIES

508.1 Required water supply.

An approved water supply capable of supplying the required fire flow for fire protection shall be provided to premises upon which facilities, buildings or portions of buildings are hereafter constructed or moved into or within the jurisdiction.

508.2 Type of water supply.

A water supply shall consist of reservoirs, pressure tanks, elevated tanks, water mains or other fixed systems capable of providing the required fire flow.

508.2.2 Water tanks.

Water tanks for private fire protection shall be installed in accordance with NFPA 22.

508.3 Fire flow.

Fire flow requirements for buildings or portions of buildings and facilities shall be determined by an approved method.

SECTION 1412

WATER SUPPLY FOR FIRE PROTECTION

1412.1 When required.

An approved water supply for fire protection, either temporary or permanent, shall be made available as soon as combustible material arrives on the site.

IFC-APPENDIX B

FIRE-FLOW REQUIREMENTS FOR BUILDINGS

Specifically adopted by the City of Cheyenne

SECTION B103

MODIFICATIONS

B103.1 Decreases.

The fire chief is authorized to reduce the fire-flow requirements for isolated buildings or a group of buildings in rural areas or small communities where the development of full fire-flow requirements is impractical.

B103.2 Increases.

The fire chief is authorized to increase the fire-flow requirements where conditions indicate an unusual susceptibility to group fires or conflagrations. An increase shall not be more than twice that required for the building under consideration.

B103.3 Areas without water supply systems.

For information regarding water supplies for fire-fighting purposes in rural and suburban areas in which adequate and reliable water supply systems do not exist, the fire code official is authorized to utilize NFPA 1142 or the International Wildland-Urban Interface Code.

Note: Response time from the current fire stations providing emergency coverage for the area are considerably outside the response time standard set by Cheyenne Fire & Rescue. While a Cheyenne Fire & Rescue response can be provided at an improved level to that currently provided, we believe we have issues relating to this annexation. An emergency response for the first-due emergency equipment will be approximately 8-9 minutes, a concerning increase over the current standard of a 4 minute response applied to the rest of the city. The increased response time exponentially increases the danger to citizens and emergency responders in the event of a fire, explosive incident or medical emergency. The primary viable solution for this issue can be addressed by the addition of a fire station located within the Swan Ranch Rail Park area. Numerous discussions have taken place with the Swan Ranch developers regarding the donation of a parcel of land for the purpose of erecting and staffing a fire station. The discussions are ongoing.

Cheyenne Fire & Rescue's initial concern for the development phase of the annexation is the availability of a fire protection water supply. However, the water supply issue may be addressed in the near term with careful planning, a rigorous inspection program and proper application of the International Fire Code. First and foremost, the above mentioned fire station issue can, and should, play a large role in alleviating some of the fire water issues.

Nothing in this guide shall relieve any parties of any and all other requirements set forth by the City of Cheyenne, Cheyenne Fire & Rescue, the Chief Building Official or any other lawful entity recognized as an authority having jurisdiction.

Board of Public Utilities:

Granite Peak Development, LLC, Clear Creek Land Company, LLC, and Swan Ranch, LLC. have enter into a Water / Sewer System Lease Agreement with the Board of Public Utilities March 8, 2010 and a

Development Agreement with the City of Cheyenne April 22, 2011. The Board of Public Utilities (BOPU) supports any City Annexation or BOPU Outside Users Agreements. The Sawn Ranch Rail Park currently has BOPU' Sewer and Non-Potable water from a well that feeds into a water tank. This water supply is designate for fire protection only. These User's in the Swan Ranch Rail Park must enter into a Outside Users Agreements with the BOPU. Any User that wants to use the Non-Potable water for use the restroom of their facility must also enter into a Memorandum of Understanding between the BOPU and Swan Ranch Properties, LLC. Currently Granite Peak Development is planning this spring to construct a 12" water main and 10" sewer main in the Swan Ranch II. This construction will began at the intersection of Berwick Dr. and Tundra Dr., run east along Berwick Dr. to Wallick Rd. turn south down Wallick Rd to Clear Creek Parkway. The BOPU is schedule to have completed in June of 2014, a 42" water main ready to be release for service. This 42" water is coming from the north and will run south down Berwick RD. to Granite Peak Dr., turn southeast on Granite Peak Dr and run down to Clear Creek Parkway, turn south and run down Quartz Dr., turn southeast run under the interstate to the east.

Before any business can hooks to the water and sewer they must hire Wyoming Professional Engineer to submit a proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities. After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. When the D.E.Q. permit is issued, City's Engineer's Office and Cheyenne Fire Department have reviewed and signatures of approval are obtained. Then the Agent/Owner may employ a licensed contractor to install the utilities, apply for all applications for water/sewer tap permits from the BOPU, and request a preconstruction meeting with all parties involved prior to construction.

All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

Environmental Health:

Standards & Regulations: Laramie County Small Wastewater System Regulations State Groundwater Engineer Minimum Standards for water wells "201" Facilities Management Agreement Staff Comments: Swan Ranch is in the "201" area and this office recommends that the proposed Annexation area be hooked to public water and sewer.

City Clerk's Office:

My only concern with the annexation map and legal description involves the absence of any mention of the plats lying within the annexation boundary. This has already been discussed with Planning. I otherwise have no comments.

GIS:

Should the Rights-Of-Way of Tundra Drive and Clear Creek Parkway be included in this annexation? Berwick Drive is included. (Note: Please see report for explanation.)

Engineering:

The preliminary Soils Map submitted with the annexation does not satisfy the requirements pursuant to Section 1.16.030(B)(2) of City Code. (Note: This comment has been addressed with a waiver request letter.)

Urban Planning: (Note: These comments addressed by revised map.)

1. Change name (Swan Ranch II Annexation)
2. Replace shaded line for existing City limits with different hatch markings.

Development:

1. An 18" Sanitary Sewer Main exists in the to be constructed Berwick Drive Right of way and extends into the county and is currently serving properties with outside users agreements as far as 1/2 mile south of the High Plains Interchange.
2. There is a water line south of the annexation area serving the existing development near high plain interchange south of Tundra. Water mains are planned in Berwick, Clear Creek and Wallick to tie into the transmission main. There are dry water mains already installed in Clear Creek from Quartz to Granite Peak also to tie into the transmission line.
3. Most of the land within the proposed annexation area is not platted and will need to be platted in the City. Approximately 105 acres at the south end of the annexation was platted in the county. One of those lots (Lot 3 Block 1, Swan 4th, 30acres) is being developed by Longhaul Enterprises LLC.
4. Berwick Road is platted (100' wide) (included in the annexation) to Wallick and Wallick is platted (120' wide) from Berwick to Clear Creek. Clear Creek is mostly not platted.
5. A preliminary plat known as Swan Ranch 5th filing includes the annexation area and the surrounding areas.
6. One outside user agreement exists in the annexation area attached to the Longhaul site currently under construction. The OUA includes consent to annex.
7. Other OUA's in or out of the annexation area
 - Lot 1 Block 1 3rd Filing 9/2/11
 - Portions of Section 27 and 34 7/25/11
 - Lots 1-3, Block 2 3rd Filing 9/2/11
 - Lot 4 Block 1 3rd Filing 11/17/11
 - Lot 3 Block 1 1st Filing 11/17/11
 - Lot 2 Block 1 1st Filing 11/17/11
 - Lot 1 Block 2 2nd Filing 11/17/11
 - Lot 2 Block 1 3rd Filing 12/15/11
 - Lot One Energy Park One 2/4/13
8. Development agreement between the City and Developer (Granite Peak Development LLC, Clear Creek Land Company LLC, Clear Creek Land Company) describes extension of sanitary sewer and dedication of open space along Clear Creek (north of the annexation area). The City contributed \$300k to the sewer line development for economic development. The Developer agreed all or part of area will be annexed at the City's request. The agreement also describes that the City will reimburse and park fees in exchange for the 400 acres land dedication. The agreement also reserves trail corridors under the railroad on the west end of the property.

City Surveyor: (Note: These comments have been addressed with a revised map.)

1. Boundary survey data appears mostly in order.

2. The one minor discrepancy found between the boundary and LEGAL DESCRIPTION involves the tenth course in the LEGAL DESCRIPTION. In the legal, the radius of the curve recites 10060.02', but in the curve data on the map it recites 10060.00'. This 0.02' discrepancy needs to be corrected in one location or the other.
3. In the CERTIFICATE OF SURVEYOR it recites "...and that the monuments are set or found as shown...". However, the survey corners are not shown, and are required to be shown. These should also be described in the LEGEND.
4. The VICINITY MAP does not clearly show the area to be annexed. A crosshatched or shaded area needs to be provided and properly labeled. Is the VICINITY MAP to scale?
5. The TITLE BLOCK is incomplete, and should read as follows: ANNEXATION MAP OF SWAN RANCH BEING LOT 1, BLOCK 2, SWAN RANCH RAIL PARK FIRST FILING; ALL OF SWAN RANCH RAIL PARK FOURTH FILING; AND PORTIONS OF SECTIONS 14, 15, 22, 23, AND 27, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING.
6. "Dimensional information from the recorded plat(s) of the parcels being annexed must be shown." Therefore, Lot 1, Block 2, Swan Ranch Rail Park First Filing; and all of the lots within Swan Ranch Rail Park Fourth Filing must be properly shown, labeled and dimensional information provided.
7. "The names of the owners of abutting unplatted property and/or the names of adjacent subdivisions." This information must be provided.
8. Northeast of CONTROL MONUMENT "PHIPPEN" on the map is a set of what appear to be coordinates. I think they should be deleted?
9. There is no 1" x 4" FILING RECORD block provided for recording in the Laramie County Clerk's Office. This needs to be provided.

AGENCIES RESPONDING WITHOUT COMMENT: County Assessor, Drainage Engineering, Traffic Engineering, Optimum, Parks and Recreation, High West Energy.

AGENCIES NOT RESPONDING: CenturyLink, Cheyenne Light Fuel & Power, County Clerk, County Fire District 1, County Planning (spoke with Gary Kranse), County Public Works (spoke with Don Beard), County Sheriff, Laramie County Conservation District, MPO.

OTHER COMMENTS RECEIVED: None.

Encl: Annexation Resolution
Annexation Ordinance
Annexation Map

cc: Agent
File